

COMMITTEE ON COMMERCE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2429
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 9-500.39, Arizona Revised Statutes, is amended
3 to read:

4 9-500.39. Limits on regulation of vacation rentals and
5 short-term rentals; state preemption; civil
6 penalties; transaction privilege tax license
7 suspension; definitions

8 A. A city or town may not prohibit vacation rentals or short-term
9 rentals.

10 B. A city or town may not restrict the use of or regulate vacation
11 rentals or short-term rentals based on their classification, use or
12 occupancy except as provided in this section. A city or town may regulate
13 vacation rentals or short-term rentals as follows:

14 1. To protect the public's health and safety, including rules and
15 regulations related to fire and building codes, health and sanitation,
16 transportation or traffic control and solid or hazardous waste and
17 pollution control, if the city or town demonstrates that the rule or
18 regulation is for the primary purpose of protecting the public's health
19 and safety.

20 2. To adopt and enforce use and zoning ordinances, including
21 ordinances related to noise, protection of welfare, property maintenance
22 and other nuisance issues, if the ordinance is applied in the same manner
23 as other property classified under sections 42-12003 and 42-12004.

24 3. To limit or prohibit the use of a vacation rental or short-term
25 rental for the purposes of housing sex offenders, operating or maintaining
26 a sober living home, selling illegal drugs, liquor control or pornography,
27 obscenity, nude or topless dancing and other adult-oriented businesses.

28 4. To require the owner of a vacation rental or short-term rental
29 to provide the city or town with emergency contact information for the
30 owner or the owner's designee who is responsible for responding to
31 complaints or emergencies in a timely manner in person if required by
32 public safety personnel, over the phone or by email at any time of day
33 before offering for rent or renting the vacation rental or short-term
34 rental. In addition to any other penalty imposed pursuant to this
35 section, the city or town may impose a civil penalty of up to \$1,000
36 against the owner for every thirty days the owner fails to provide contact
37 information as prescribed by this paragraph. The city or town shall
38 provide thirty days' notice to the owner before imposing the initial civil
39 penalty.

1 5. To require the owner of a vacation rental or short-term rental
2 to obtain and maintain a local regulatory permit or license. As a
3 condition of issuance of a permit or license, the application for the
4 permit or license may require an applicant to provide only the following:
5 (a) The name, address, telephone number and email address for the
6 owner or owner's agent.
7 (b) The address of the vacation rental or short-term rental.
8 (c) Proof of compliance with section 42-5005.
9 (d) Contact information required pursuant to paragraph 4 of this
10 subsection.
11 (e) Acknowledgment of an agreement to comply with all applicable
12 laws, regulations and ordinances.
13 (f) A fee not to exceed the actual cost of issuing the permit or
14 license or \$250, whichever is less.
15 6. To require, before offering a vacation rental or short-term
16 rental for rent for the first time, the owner or the owner's designee of a
17 vacation rental or short-term rental to notify all single-family
18 residential properties adjacent to and directly and diagonally across the
19 street from the vacation rental or short-term rental. Notice shall be
20 deemed sufficient in a multifamily residential building if given to
21 residents on the same building floor. A city or town may require
22 additional notification pursuant to this paragraph if the contact
23 information previously provided changes. Notification provided in
24 compliance with this paragraph shall include the permit or license number
25 if required by the city or town, the address of the vacation rental or
26 short-term rental and the information required pursuant to paragraph 4 of
27 this subsection. The owner or the owner's designee shall demonstrate
28 compliance with this paragraph by providing the city or town with an
29 attestation of notification compliance that consists of the following
30 information:
31 (a) The permit or license number of the vacation rental or
32 short-term rental, if required by the city or town.
33 (b) The address of each property notified.
34 (c) A description of the manner in which the owner or owner's
35 designee chose to provide notification to each property subject to
36 notification.
37 (d) The name and contact information of the person attesting to
38 compliance with this paragraph.
39 7. To require the owner or owner's designee of a vacation rental or
40 short-term rental to display the local regulatory permit number or license
41 number, if any, on each advertisement for a vacation rental or short-term
42 rental that the owner or owner's designee maintains. A city or town that
43 does not require a local regulatory permit or license may require the
44 owner or owner's designee of a vacation rental or short-term rental to
45 display the transaction privilege tax license number required by section
46 42-5042 on each advertisement for a vacation rental or short-term rental
47 that the owner or owner's designee maintains.

1 8. To require the vacation rental or short-term rental to maintain
2 liability insurance appropriate to cover the vacation rental or short-term
3 rental in the aggregate of at least \$500,000 or to advertise and offer
4 each vacation rental or short-term rental through an online lodging
5 marketplace that provides equal or greater coverage.

6 9. To require the owner of a vacation rental or short-term rental
7 to reside on the property if the property contains an accessory dwelling
8 unit and if a certificate of occupancy, certificate of completion or
9 similar final approval for the accessory dwelling unit was issued by the
10 municipality on or after September 14, 2024. This paragraph does not
11 apply to an owner of a vacation rental or short-term rental if the
12 property contains an accessory dwelling unit and the certificate of
13 completion, the certificate of occupancy or a similar final approval for
14 the accessory dwelling unit was issued on or before September 13, 2024.

15 10. FOR LIMITS ON OCCUPANCY, THE MAXIMUM OCCUPANCY FOR AN OVERNIGHT
16 STAY IN A VACATION RENTAL OR SHORT-TERM RENTAL SHALL BE CALCULATED AS
17 FOLLOWING:

18 (a) THE MAXIMUM OCCUPANCY FOR OVERNIGHT STAYS FOR A VACATION RENTAL
19 OR SHORT-TERM RENTAL UNIT SHALL BE LIMITED TO TWO ADULTS PER SLEEPING AREA
20 PLUS UP TO TWO ADDITIONAL PERSONS, NOT INCLUDING MINORS.

21 (b) OCCUPANCY LIMITS FOR VACATION RENTAL OR SHORT-TERM RENTAL UNITS
22 SHALL ONLY APPLY TO GUESTS STAYING OVERNIGHT.

23 C. A city or town that requires a local regulatory permit or
24 license pursuant to this section shall issue or deny the permit or license
25 within seven business days of receipt of the information required by
26 subsection B, paragraph 5 of this section and otherwise in accordance with
27 section 9-835, except that a city or town may deny issuance of a permit or
28 license only for any of the following:

29 1. Failure to provide the information required by subsection B,
30 paragraph 5, subdivisions (a) through (e) of this section.

31 2. Failure to pay the required permit or license fee.

32 3. At the time of application the owner has a suspended permit or
33 license for the same vacation rental or short-term rental.

34 4. The applicant provides false information.

35 5. The owner or owner's designee of a vacation rental or short-term
36 rental is a registered sex offender or has been convicted of any felony
37 offense that resulted in death or serious physical injury or any felony
38 use of a deadly weapon within the past five years.

39 6. THE APPLICANT HAS UNPAID FINES OR CIVIL PENALTIES FOR VIOLATIONS
40 OF THE CITY'S OR TOWN'S VACATION RENTAL OR SHORT-TERM RENTAL ORDINANCE
41 ASSOCIATED WITH THAT PROPERTY.

42 D. A city or town that requires a local regulatory permit or
43 license pursuant to this section shall adopt an ordinance to allow the
44 city or town to initiate an administrative process to suspend a local
45 regulatory permit or license for a period of up to twelve months for the
46 following verified violations associated with a property:

1 1. Three verified violations within a ~~twelve-month~~ TWENTY-FOUR-
2 MONTH period, not including any verified violation based on an aesthetic,
3 solid waste disposal or vehicle parking violation that is not also a
4 serious threat to public health and safety.

5 2. One verified violation that results in or constitutes any of the
6 following:

7 (a) A felony offense committed at or in the vicinity of a vacation
8 rental or short-term rental by the vacation rental or short-term rental
9 owner or owner's designee.

10 (b) A serious physical injury or wrongful death at or related to a
11 vacation rental or short-term rental resulting from the knowing,
12 intentional or reckless conduct of the vacation rental or short-term
13 rental owner or owner's designee.

14 (c) An owner or owner's designee knowingly or intentionally housing
15 a sex offender, allowing offenses related to adult-oriented businesses,
16 sexual offenses or prostitution, or operating or maintaining a sober
17 living home, in violation of a regulation or ordinance adopted pursuant to
18 subsection B, paragraph 3 of this section.

19 (d) An owner or owner's designee knowingly or intentionally
20 allowing the use of a vacation rental or short-term rental for a special
21 event that would otherwise require a permit or license pursuant to a city
22 or town ordinance or a state law or rule or for a retail, restaurant,
23 banquet space or other similar use.

24 (e) A VIOLATION OF A BUILDING CODE THAT PRESENTS A SERIOUS THREAT
25 TO PUBLIC HEALTH OR SAFETY THAT IS RELATED TO CONSTRUCTING, MODIFYING OR
26 ALTERING A VACATION RENTAL OR SHORT-TERM RENTAL WITHOUT A REQUIRED
27 BUILDING PERMIT OR FAILING TO REMEDY AN UNSAFE OR UNSANITARY CONDITION.

28 3. Notwithstanding paragraphs 1 and 2 of this subsection, any
29 attempted or completed felony offense, arising from the occupancy or use
30 of a vacation rental or short-term rental, that results in a death, or
31 actual or attempted serious physical injury, shall be grounds for judicial
32 relief in the form of a suspension of the property's use as a vacation
33 rental or short-term rental for a period of time that shall not exceed
34 twelve months.

35 E. A city or town that requires A LOCAL REGULATORY PERMIT OR
36 LICENSE PURSUANT TO THIS SECTION SHALL ADOPT AN ORDINANCE REQUIRING sex
37 offender background checks on a vacation rental or short-term rental
38 BOOKING guest AND shall waive the requirement if an online lodging
39 marketplace performs a sex offender background check of the booking guest.

40 F. Notwithstanding any other law, a city or town may impose a civil
41 penalty of the following amounts against an owner of a vacation rental or
42 short-term rental if the owner receives one or more verified violations
43 related to the same vacation rental or short-term rental property within
44 the same twelve-month period:

45 1. Up to \$500 or up to an amount equal to one night's rent for the
46 vacation rental or short-term rental as advertised, whichever is greater,
47 for the first verified violation.

1 2. Up to \$1,000 or up to an amount equal to two nights' rent for
2 the vacation rental or short-term rental as advertised, whichever is
3 greater, for the second verified violation.

4 3. Up to \$3,500 or up to an amount equal to three nights' rent for
5 the vacation rental or short-term rental as advertised, whichever is
6 greater, for a third and any subsequent verified violation.

7 G. A vacation rental or short-term rental that fails to apply for a
8 local regulatory permit or license in accordance with subsection B,
9 paragraph 5 of this section, within thirty days of the local regulatory
10 permit or license application process being made available by the city or
11 town issuing such permits or licenses, must cease operations. In addition
12 to any civil penalties imposed pursuant to subsection F of this section, a
13 city or town may impose a civil penalty of up to \$1,000 per month against
14 the owner if the owner or owner's designee fails to apply for a regulatory
15 permit or license within thirty days after receiving written notice of the
16 failure to comply with subsection B, paragraph 5 of this section.

17 H. If multiple verified violations arise out of the same response
18 to an incident at a vacation rental or short-term rental, those verified
19 violations are considered one verified violation for the purpose of
20 assessing civil penalties or suspending the regulatory permit or license
21 of the owner pursuant to this section.

22 I. If the owner of a vacation rental or short-term rental has
23 provided contact information to a city or town pursuant to subsection B,
24 paragraph 4 of this section and if the city or town issues a citation for
25 a violation of the city's or town's applicable laws, regulations or
26 ordinances or a state law that occurred on the owner's vacation rental or
27 short-term rental property, the city or town shall make a reasonable
28 attempt to notify the owner or the owner's designee of the citation within
29 seven business days after the citation is issued using the contact
30 information provided pursuant to subsection B, paragraph 4 of this
31 section. If the owner of a vacation rental or short-term rental has not
32 provided contact information pursuant to subsection B, paragraph 4 of this
33 section, the city or town is not required to provide such notice.

34 J. This section does not exempt an owner of a residential rental
35 property, as defined in section 33-1901, from maintaining with the
36 assessor of the county in which the property is located information
37 required under title 33, chapter 17, article 1.

38 K. A vacation rental or short-term rental may not be used for
39 nonresidential uses, including for a special event that would otherwise
40 require a permit or license pursuant to a city or town ordinance or a
41 state law or rule or for a retail, restaurant, banquet space or other
42 similar use.

43 L. For the purposes of this section:

44 1. "Accessory dwelling unit" has the same meaning prescribed in
45 section 9-461.18.

46 2. "Online lodging marketplace" has the same meaning prescribed in
47 section 42-5076.

1 3. "Transient" has the same meaning prescribed in section 42-5070.

2 4. "Vacation rental" or "short-term rental":

3 (a) Means any individually or collectively owned single-family or
4 one-to-four-family house or dwelling unit or any unit or group of units in
5 a condominium or cooperative that is also a transient public lodging
6 establishment or owner-occupied residential home offered for transient use
7 if the accommodations are not classified for property taxation under
8 section 42-12001.

9 (b) Does not include a unit that is used for any nonresidential
10 use, including retail, restaurant, banquet space, event center or another
11 similar use.

12 5. "Verified violation" means a finding of guilt or civil
13 responsibility for violating any state law or local ordinance relating to
14 a purpose prescribed in subsection B, D, F or K of this section that has
15 been finally adjudicated.

16 Sec. 2. Section 11-269.17, Arizona Revised Statutes, is amended to
17 read:

18 11-269.17. Limits on regulation of vacation rentals and
19 short-term rentals; state preemption; civil
20 penalties; transaction privilege tax license
21 suspension; definitions

22 A. A county may not prohibit vacation rentals or short-term
23 rentals.

24 B. A county may not restrict the use of or regulate vacation
25 rentals or short-term rentals based on their classification, use or
26 occupancy except as provided in this section. A county may regulate
27 vacation rentals or short-term rentals within the unincorporated areas of
28 the county as follows:

29 1. To protect the public's health and safety, including rules and
30 regulations related to fire and building codes, health and sanitation,
31 transportation or traffic control and solid or hazardous waste and
32 pollution control, if the county demonstrates that the rule or regulation
33 is for the primary purpose of protecting the public's health and safety.

34 2. To adopt and enforce use and zoning ordinances, including
35 ordinances related to noise, protection of welfare, property maintenance
36 and other nuisance issues, if the ordinance is applied in the same manner
37 as other property classified under sections 42-12003 and 42-12004.

38 3. To limit or prohibit the use of a vacation rental or short-term
39 rental for the purposes of housing sex offenders, operating or maintaining
40 a sober living home, selling illegal drugs, liquor control or pornography,
41 obscenity, nude or topless dancing and other adult-oriented businesses.

42 4. To require the owner of a vacation rental or short-term rental
43 to provide the county with emergency contact information for the owner or
44 the owner's designee who is responsible for responding to complaints or
45 emergencies in a timely manner in person if required by public safety
46 personnel, over the phone or by email at any time of day before offering
47 for rent or renting the vacation rental or short-term rental. In addition

1 to any other penalty imposed pursuant to this section, the county may
2 impose a civil penalty of up to \$1,000 against the owner for every thirty
3 days the owner fails to provide contact information as prescribed by this
4 paragraph. The county shall provide thirty days' notice to the owner
5 before imposing the initial civil penalty.

6 5. To require the owner of a vacation rental or short-term rental
7 to obtain and maintain a local regulatory permit or license. As a
8 condition of issuance of a permit or license, the application for the
9 permit or license may require an applicant to provide only the following:

10 (a) The name, address, telephone number and email address for the
11 owner or owner's agent.

12 (b) The address of the vacation rental or short-term rental.

13 (c) Proof of compliance with section 42-5005.

14 (d) Contact information required pursuant to paragraph 4 of this
15 subsection.

16 (e) Acknowledgment of an agreement to comply with all applicable
17 laws, regulations and ordinances.

18 (f) A fee not to exceed the actual cost of issuing the permit or
19 license or \$250, whichever is less.

20 6. To require, before offering a vacation rental or short-term
21 rental for rent for the first time, the owner or the owner's designee of a
22 vacation rental or short-term rental to notify all single-family
23 residential properties adjacent to and directly and diagonally across the
24 street from the vacation rental or short-term rental. Notice shall be
25 deemed sufficient in a multifamily residential building if given to
26 residents on the same building floor. A county may require additional
27 notification pursuant to this paragraph if the contact information
28 previously provided changes. Notification provided in compliance with
29 this paragraph shall include the permit or license number if required by
30 the county, the address of the vacation rental or short-term rental and
31 the information required pursuant to paragraph 4 of this subsection. The
32 owner or the owner's designee shall demonstrate compliance with this
33 paragraph by providing the county with an attestation of notification
34 compliance that consists of the following information:

35 (a) The permit or license number of the vacation rental or
36 short-term rental, if required by the county.

37 (b) The address of each property notified.

38 (c) A description of the manner in which the owner or owner's
39 designee chose to provide notification to each property subject to
40 notification.

41 (d) The name and contact information of the person attesting to
42 compliance with this paragraph.

43 7. To require the owner or owner's designee of a vacation rental or
44 short-term rental to display the local regulatory permit number or license
45 number, if any, on each advertisement for a vacation rental or short-term
46 rental that the owner or owner's designee maintains. A county that does
47 not require a local regulatory permit or license may require the owner or

1 owner's designee of a vacation rental or short-term rental to display the
2 transaction privilege tax license number required by section 42-5042 on
3 each advertisement for a vacation rental or short-term rental that the
4 owner or owner's designee maintains.

5 8. To require the vacation rental or short-term rental to maintain
6 liability insurance appropriate to cover the vacation rental or short-term
7 rental in the aggregate of at least \$500,000 or to advertise and offer
8 each vacation rental or short-term rental through an online lodging
9 marketplace that provides equal or greater coverage.

10 9. To require the owner of a vacation rental or short-term rental
11 to reside on the property if the property contains an accessory dwelling
12 unit and if a certificate of occupancy, certificate of completion or
13 similar final approval for the accessory dwelling unit was issued by the
14 county on or after September 14, 2024. This paragraph does not apply to
15 an owner of a vacation rental or short-term rental if the property
16 contains an accessory dwelling unit and the certificate of completion, the
17 certificate of occupancy or a similar final approval for the accessory
18 dwelling unit was issued on or before September 13, 2024.

19 10. FOR LIMITS ON OCCUPANCY, THE MAXIMUM OCCUPANCY FOR AN OVERNIGHT
20 STAY IN A VACATION RENTAL OR SHORT-TERM RENTAL SHALL BE CALCULATED AS
21 FOLLOWING:

22 (a) THE MAXIMUM OCCUPANCY FOR OVERNIGHT STAYS FOR A VACATION RENTAL
23 OR SHORT-TERM RENTAL UNIT SHALL BE LIMITED TO TWO ADULTS PER SLEEPING AREA
24 PLUS UP TO TWO ADDITIONAL PERSONS, NOT INCLUDING MINORS.

25 (b) OCCUPANCY LIMITS FOR UNITS SHALL ONLY APPLY TO GUESTS STAYING
26 OVERNIGHT.

27 C. A county that requires a local regulatory permit or license
28 pursuant to this section shall issue or deny the permit or license within
29 seven business days of receipt of the information required by subsection
30 B, paragraph 5 of this section and otherwise in accordance with section
31 11-1602, except that a county may deny issuance of a permit or license
32 only for any of the following:

33 1. Failure to provide the information required by subsection B,
34 paragraph 5, subdivisions (a) through (e) of this section.

35 2. Failure to pay the required permit or license fee.

36 3. At the time of application the owner has a suspended permit or
37 license for the same vacation rental or short-term rental.

38 4. The applicant provides false information.

39 5. The owner or owner's designee of a vacation rental or short-term
40 rental is a registered sex offender or has been convicted of any felony
41 offense that results in death or serious physical injury or any felony use
42 of a deadly weapon within the past five years.

43 D. A county that requires a local regulatory permit or license
44 pursuant to this section shall adopt an ordinance to allow the county to
45 initiate an administrative process to suspend a local regulatory permit or
46 license for a period of up to twelve months for the following verified
47 violations associated with a property:

1 1. Three verified violations within a ~~twelve-month~~ TWENTY-FOUR-
2 MONTH period, not including any verified violation based on an aesthetic,
3 solid waste disposal or vehicle parking violation that is not also a
4 serious threat to public health or safety.

5 2. One verified violation that results in or constitutes any of the
6 following:

7 (a) A felony offense committed at or in the vicinity of a vacation
8 rental or short-term rental by the vacation rental or short-term rental
9 owner or owner's designee.

10 (b) A serious physical injury or wrongful death at or related to a
11 vacation rental or short-term rental resulting from the knowing,
12 intentional or reckless conduct of the vacation rental or short-term
13 rental owner or owner's designee.

14 (c) An owner or owner's designee knowingly or intentionally housing
15 a sex offender, allowing offenses related to adult-oriented businesses,
16 sexual offenses or prostitution, or operating or maintaining a sober
17 living home, in violation of regulation or ordinance adopted pursuant to
18 subsection B, paragraph 3 of this section.

19 (d) An owner or owner's designee knowingly or intentionally
20 allowing the use of a vacation rental or short-term rental for a special
21 event that would otherwise require a permit or license pursuant to a
22 county ordinance or a state law or rule or for a retail, restaurant,
23 banquet space or other similar use.

24 (e) A VIOLATION OF A BUILDING CODE THAT PRESENTS A SERIOUS THREAT
25 TO PUBLIC HEALTH OR SAFETY THAT IS RELATED TO CONSTRUCTING, MODIFYING OR
26 ALTERING A VACATION RENTAL OR SHORT-TERM RENTAL WITHOUT A REQUIRED
27 BUILDING PERMIT OR FAILING TO REMEDY AN UNSAFE OR UNSANITARY CONDITION.

28 3. Notwithstanding paragraphs 1 and 2 of this subsection, any
29 attempted or completed felony offense, arising from the occupancy or use
30 of a vacation rental or short-term rental, that results in a death, or
31 actual or attempted serious physical injury, shall be grounds for judicial
32 relief in the form of a suspension of the property's use as a vacation
33 rental or short-term rental for a period of time that shall not exceed
34 twelve months.

35 E. A county that requires A LOCAL REGULATORY PERMIT OR LICENSE
36 PURSUANT TO THIS SECTION SHALL ADOPT AN ORDINANCE REQUIRING sex offender
37 background checks on a vacation rental or short-term rental BOOKING guest
38 AND shall waive the requirement if an online lodging marketplace performs
39 a sex offender background check of the booking guest.

40 F. Notwithstanding any other law, a county may impose a civil
41 penalty of the following amounts against an owner of a vacation rental or
42 short-term rental if the owner receives one or more verified violations
43 related to the same vacation rental or short-term rental property within
44 the same twelve-month period:

45 1. Up to \$500 or up to an amount equal to one night's rent for the
46 vacation rental or short-term rental as advertised, whichever is greater,
47 for the first verified violation.

1 2. Up to \$1,000 or up to an amount equal to two nights' rent for
2 the vacation rental or short-term rental as advertised, whichever is
3 greater, for the second verified violation.

4 3. Up to \$3,500 or up to an amount equal to three nights' rent for
5 the vacation rental or short-term rental as advertised, whichever is
6 greater, for a third and any subsequent verified violation.

7 G. A vacation rental or short-term rental that fails to apply for a
8 local regulatory permit or license in accordance with subsection B,
9 paragraph 5 of this section, within thirty days of the local regulatory
10 permit or license application process being made available by the county
11 issuing such permits or licenses, must cease operations. In addition to
12 any civil penalties imposed pursuant to subsection F of this section, a
13 county may impose a civil penalty of up to \$1,000 per month against the
14 owner if the owner or owner's designee fails to apply for a regulatory
15 permit or license within thirty days after receiving written notice of the
16 failure to comply with subsection B, paragraph 5 of this section.

17 H. If multiple verified violations arise out of the same response
18 to an incident at a vacation rental or short-term rental, those verified
19 violations are considered one verified violation for the purpose of
20 assessing civil penalties or suspending the regulatory permit or license
21 of the owner pursuant to this section.

22 I. If the owner of a vacation rental or short-term rental has
23 provided contact information to a county pursuant to subsection B,
24 paragraph 4 of this section and if the county issues a citation for a
25 violation of the county's applicable laws, regulations or ordinances or a
26 state law that occurred on the owner's vacation rental or short-term
27 rental property, the county shall make a reasonable attempt to notify the
28 owner or the owner's designee of the citation within seven business days
29 after the citation is issued using the contact information provided
30 pursuant to subsection B, paragraph 4 of this section. If the owner of a
31 vacation rental or short-term rental has not provided contact information
32 pursuant to subsection B, paragraph 4 of this section, the county is not
33 required to provide such notice.

34 J. This section does not exempt an owner of a residential rental
35 property, as defined in section 33-1901, from maintaining with the
36 assessor of the county in which the property is located information
37 required under title 33, chapter 17, article 1.

38 K. A vacation rental or short-term rental may not be used for
39 nonresidential uses, including for a special event that would otherwise
40 require a permit or license pursuant to a county ordinance or a state law
41 or rule or for a retail, restaurant, banquet space or other similar use.

42 L. For the purposes of this section:

43 1. "Accessory dwelling unit" has the same meaning prescribed in
44 section 11-810.01.

45 2. "Online lodging marketplace" has the same meaning prescribed in
46 section 42-5076.

47 3. "Transient" has the same meaning prescribed in section 42-5070.

1 4. "Vacation rental" or "short-term rental":

2 (a) Means any individually or collectively owned single-family or
3 one-to-four-family house or dwelling unit or any unit or group of units in
4 a condominium or cooperative that is also a transient public lodging
5 establishment or owner-occupied residential home offered for transient use
6 if the accommodations are not classified for property taxation under
7 section 42-12001.

8 (b) Does not include a unit that is used for any nonresidential
9 use, including retail, restaurant, banquet space, event center or another
10 similar use.

11 5. "Verified violation" means a finding of guilt or civil
12 responsibility for violating any state law or local ordinance relating to
13 a purpose prescribed in subsection B, D, F or K of this section that has
14 been finally adjudicated."

15 Amend title to conform

And, as so amended, it do pass

JEFF WENINGER
CHAIRMAN

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02/17/2026

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H: PB/l's

1300ELSUG